

**COURT OF APPEALS, DIVISION I OF THE STATE
OF WASHINGTON**

ZACKARIAH BENNETT, Appellant,

v.

MELVINA MANNING, Respondent.

No. 87007-6-I

**AMENDMENT TO APPELLANT'S MOTION FOR
RECONSIDERATION**

I. IDENTITY OF MOVING PARTY

The Appellant, Zackariah Bennett, appearing pro se, respectfully submits this Amendment to the Motion for Reconsideration filed on February 7, 2026, pursuant to **RAP 12.4** and **RAP 9.10**.

II. GROUNDS FOR AMENDMENT

Appellant seeks to address a critical misapprehension of law in the January 26, 2026 Opinion regarding (1) the Court's duty under **RAP 9.10** when a party has made a "good faith effort" to provide the record, and (2) the Court's failure to address tortious conduct that occurred prior to the entry of any legal custody order.

III. ARGUMENT

1. The Court Misapplied the Standard for Incomplete Records under RAP 9.10. The Opinion affirms the trial court's dismissal largely by citing a "failure to perfect the record." However, **RAP 9.10** explicitly states:

"If a party has made a good faith effort to provide those portions of the record required by rule 9.2(b), the appellate court will not ordinarily dismiss... because of the failure of the party to provide the appellate court with a complete record."

Appellant demonstrated "good faith" through his **Statement of Arrangements (Oct 30, 2024)** and his **Motion to Supplement (RAP 9.11(a))**. The record was only "incomplete" because the Court denied the indigency funding required to obtain the transcripts (See *Bennett v. Manning*, No. 84450-4-I). Under RAP 9.10, the Court should have directed the supplementation of the record rather than penalizing an indigent father by affirming a dismissal based on an "invisible" record.

2. The Opinion Erroneously Reframed a Tort Claim as a Custody Dispute. The Opinion concludes that because Manning had legal custody since 2008, no "interference" could occur. This ignores the fact—admitted via **CR 8(d)** by Respondent's failure to respond—that the interference began **weeks before** the first court order was ever signed.

The "wrongful interference" began when Appellant demanded the return of T.B. pursuant to the **March 5, 2008 Temporary Custody Agreement**, and Manning refused. At that moment, Manning had no legal authority to withhold the child. The fact that she later secured a custody order through what Appellant alleges was "extrinsic fraud" (the "Colorado Story") does not retroactively immunize the initial tortious act. By focusing only on the 2008 Order, the Court effectively grants a

"thief" legal title to "stolen property" simply because they kept it long enough to trick a court into a signature.

IV. CONCLUSION

The Court's Opinion rests on a circular logic: it uses an order obtained through interference to prove there was no interference. Reconsideration is required to correct this manifest error of law and to honor the protections of **RAP 9.10**.

DATED this 7th day of February, 2026.

Respectfully submitted,



ZACKARIAH BENNETT, Pro Se Appellant
